

**Line 7**

Case Name: *Calisha Bichko*  
v.  
*Vic Web Radio LLC d/b/a Vic's Media Group, et al.*

Case No.: 25CV473371

**SUPERIOR COURT OF CALIFORNIA**

**COUNTY OF SANTA CLARA**

Plaintiff Calisha Bichko (“Plaintiff”) moves under Code of Civil Procedure Section 437c for an Order granting summary judgment, or in the alternative, summary adjudication in Plaintiff’s favor on each of the Four Causes of Action in this civil action. Notice of Motion (the “Motion”) at 2:4–2.7 (filed Feb. 18, 2026). Plaintiff makes this Motion on the grounds that there is no triable issue of material fact and Plaintiff is entitled to judgment as a matter of law on the following causes of action in the Complaint filed by Plaintiff against Defendants Vic Web Radio LLC d/b/a Vic’s Media Group, and Victor Webster, an individual (collectively, “Defendants”):

**Issue 1:** Plaintiff’s First Cause of Action, alleging Breach of Contract, is subject to summary judgment or summary adjudication because there is no genuine issue of material fact and Plaintiff is entitled to judgment as a matter of law;

**Issue 2:** Plaintiff’s Second Cause of Action, alleging Promissory Fraud, is subject to summary judgment or summary adjudication because there is no genuine issue of material fact and Plaintiff is entitled to judgment as a matter of law;

**Issue 3:** Plaintiff’s Third Cause of Action, alleging violation of California Labor Code §§ 204, 210, 226, and 2802, is subject to summary judgment or summary adjudication because there is no genuine issue of material fact and Plaintiff is entitled to judgment as a matter of law; and

**Issue 4:** Plaintiff’s Fourth Cause of Action, alleging violation of California’s Business & Professions Code § 17200 *et seq.* is subject to summary judgment or summary adjudication because there is no genuine issue of material fact and Plaintiff is entitled to judgment as a matter of law.

*Id.* at 2:7–3:3.

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

## **Background**

Plaintiff brings this civil action against Defendants Vic's Group and Webster.

On August 22, 2025, Plaintiff filed a complaint against Defendants, asserting the following four causes of action:

1. Breach of Contract;
2. Promissory Fraud;
3. Violation of Labor Code Sections 204, 210, 226, and 2802; and
4. Violation of Business and Professions Code Section 17200 *et seq.*

According to the Complaint, Defendants failed to pay Plaintiff for work she performed as General Manager for Vic's Group under an "Independent Contractor Agreement" despite Plaintiff's full performance of her contractual obligations while working at the radio station. (Complaint, ¶¶ 1, 11, 14.) Plaintiff alleges she was also misclassified as an Independent Contractor. (Complaint, ¶ 2.) Plaintiff has made several attempts to obtain just compensation but has been largely ignored by Webster. (*Id.* at ¶ 21.) When Webster has responded, he only offered excuses. (*Ibid.*)

On December 3, 2025, Plaintiff filed this Motion for summary judgment, or in the alternative, summary adjudication for each of the four causes of action, under Code of Civil Procedure Section 437c. Motion at 2:4–3:3.

The Motion is unopposed.

### **I. Legal Standard on Motion for Summary Judgment or Summary Adjudication**

A motion for summary judgment or summary adjudication "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).)

The "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact[.]" (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.)

If the moving party makes the necessary initial showing, the burden of production shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at p. 850.) "There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the

underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Ibid.*) “[I]f the court concludes that the [opposing party’s] evidence or inferences raise a triable issue of material fact, it must conclude its consideration and deny the [moving party’s] motion.” (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Augilar, supra*, 25 Cal.4th at p. 844 [internal quotations omitted].) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

## **II. Analysis of the Motion for the First Cause of Action for Breach of Contract**

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance, (3) the defendant’s breach, and (4) the resulting damage to the plaintiff.” (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

In support of her Motion regarding the First Cause of Action for Breach of Contract, Plaintiff provides the following evidence:

1. Plaintiff and Webster, owner of Vic’s Group, entered into an employment contract entitled Independent Contractor Agreement (“the Agreement”) on May 1, 2025. (UMF 1 [Ex. 1].)
2. Plaintiff fully performed her obligations under the Agreement by serving as general manager and completing all tasks assigned by her employer, Webster. (UMF 2 [Bichko Decl., ¶¶ 6-10].)
3. Under the Agreement, Defendants were aware they were obligated to pay Plaintiff \$3,500 a month plus additional compensation for additional tasks. (UMFs 3, 4 [Ex. 1, ¶¶ 3-4].)
4. During three months of employment, Defendants compensated Plaintiff with \$1,000 and thereafter, no further payments were made pursuant to the Agreement leaving an unpaid balance of \$11,013.79. (UMF 8 [Ex. 4].)

Based on the foregoing, Plaintiff meets her initial burden of production demonstrating that Defendants entered into a signed, written agreement; Plaintiff performed by serving as general manager and completing additional required tasks; and Defendant breached the Agreement by failing to compensate payments as required by the Agreement, resulting in damage to Plaintiff.

Defendants failed to oppose the Motion for summary judgement and therefore have not met their burden of raising a triable issue of material fact.

Accordingly, Plaintiff’s Motion for Summary Adjudication of the First Cause of

Action for Breach of Contract is GRANTED in favor of Plaintiff and against Defendants.

### **III. Analysis of the Motion for the Second Cause of Action Promissory Fraud**

“Promissory fraud is a species of fraud requiring proof of ‘(1) a promise made regarding a material fact without any intention of performing it; (2) the existence of the intent not to perform at the time the promise was made; (3) intent to deceive or induce the promisee to enter into a transaction; (4) reasonable reliance by the promisee; (5) nonperformance by the party making the promise; and (6) resulting damage to the promise[e].” (*Ryder v. Lightstorm Entertainment, Inc.* (2016) 246 Cal.App.4th 1064, 1079.)

In support of her Motion regarding the Second Cause of Action for Promissory Fraud, Plaintiff provides the following evidence:

1. Defendants promised to pay Plaintiff \$3,500 per month, plus additional compensation for additional tasks. (UMF 9 [Ex. 1].)
2. At the time of entering into the Agreement, Defendants knew they could not afford the agreed-upon compensation. (UMF 10 [Defendants’ Answer, ¶ 3(b); Bichko Decl., ¶¶ 6-10].)
3. Defendants made the promise to pay the compensation amounts to induce Plaintiff to continue working and operating the radio station for Defendants’ own financial benefit, knowing the radio station could not function without her. (UMF 11 [Bichko Decl., ¶ 6; Defendants’ Answer, ¶¶ 4, 5].)
4. Plaintiff relied on Defendants’ promise to pay in accepting to maintain her role as General Manager. (UMF 12 [Ex. 1; Bichko Decl., ¶¶ 6, 10].)
5. Plaintiff was damages due to the outstanding invoices as a result of Defendants’ failure to compensate her as agreed. (UMF 13 [Exs. 1-4, Defendant’s Answer, ¶¶ 4-6].)

The Court does not find that Plaintiff meets her burden as to the third element of the promissory fraud claim. The cited evidence includes only Plaintiff’s own declaration stating that Webster acquired the radio station where Plaintiff was already serving as a general manager and asked plaintiff to stay as general manager. (Bichko Decl., ¶ 6.) Moreover, the cited portions of Defendants’ answer indicate that *Plaintiff* insisted the station could not operate without her, Webster did not want to work with Plaintiff long term, and Webster’s predecessor *instructed Plaintiff* that as part of the sale she should train Webster to operate the radio station on his own. (Defendant’s Answer, ¶¶ 3(b), 5.) Defendants’ answer further states that Webster was waiting for funds to come in to help pay the balance owed to Plaintiff. (*Id.* at ¶ 6.). Hence, the Court finds that triable issues of fact *exist* over this third element. Accordingly, as Plaintiff does not establish that there is no triable issue of material fact as to Defendants’ intent, Plaintiff has not met her initial

burden for purposes of this Motion.

To be crystal clear, the Court does *not* now rule or suggest at all that Plaintiff wins or even is likely to win at trial on this third element, but rather (more modestly) that triable issues of fact *exists* over this third element of the promissory fraud claim, rendering summary adjudication of this Second Cause of Action inappropriate.

Accordingly, Plaintiff's Motion for Summary Adjudication of the Second Cause of Action for Promissory Fraud is DENIED.

As the Second Cause of Action for Promissory Fraud survives, Plaintiff's Motion for Summary Judgment seeking to dispose completely of the *entire* civil action fails as a matter of logic and law. Accordingly, Plaintiff's Motion for Summary Judgment is DENIED as well.

#### **IV. Analysis of the Motion for the Third Cause of Action for Violation of Labor Code Sections 204, 210, 226, and 2802**

As a threshold matter regarding the Third Cause of Action, Plaintiff alleges that she is misclassified as an independent contractor but is instead an employee pursuant to Labor Code section 2775. (Complaint, ¶ 40.)

For purposes of the Labor Code, a person providing labor will be considered an employee rather than an independent contractor unless the hiring entity demonstrates: a) the person is free from the control and direction of the hiring entity in connection with the performance of the work, both under the contract and in fact; b) the person performs work outside the usual course of the hiring entity's business; and c) the person is customarily engaged in an independently established occupation of the same nature as that involved in the work performed. (Lab. Code, § 2775, subd. (b)(1)(A)-(C).) The California Supreme Court has determined that the burden of proof rests with the hiring entity to establish that a worker is an independent contractor by establishing each of the three factors. (*Dynamex Operations W. v. Superior Court* (2018) 4 Cal.5th 903, 956-957.) Failure to satisfy any one of the three factors "establishes that the worker should be treated as an employee[.]" (*Id.* at p. 963.)

In this case, Defendants fail to meet this burden as they have not opposed the Motion. Accordingly, for purposes of this Motion the Court deems Plaintiff to be an employee rather than an independent contractor. The Court next addresses the alleged Labor Code violations.

Plaintiff alleges the following violations: failure to pay wages (Lab. Code, § 204); failure to timely pay wages (Lab. Code, § 210); failure to furnish an itemized wage statement in writing (Lab. Code, § 226); and failure to reimburse for necessary business expenses (Lab. Code, § 2802). (Complaint, ¶¶ 41-45.)

In support of her Motion regarding the Third Cause of Action for Violation of Labor

Code Sections 204, 210, 226, and 2802, Plaintiff proffers the following evidence:

1. Defendants failed to pay Plaintiff at least once a month and failed to timely pay Plaintiff. (UMFs 25, 26 [Exs. 1-4].)
2. Defendants never provided Plaintiff an itemized wage statement during the three months she was employed by Defendant. (UMF 28 [Bichko Decl., ¶ 12].)
3. Defendant never reimbursed Plaintiff for necessary business expenses incurred while performing her job duties. (UMF 30 [Defendant's Answer, ¶ 6; Bichko Decl., ¶¶ 3, 4, 12].)

Based on the foregoing, Plaintiff meets her initial burden of production demonstrating that Defendants violated these Labor Code sections. And as Defendants have failed to oppose the Motion, Defendants have not met their burden of raising a triable issue of material fact.

Accordingly, Plaintiff's Motion for Summary Adjudication of the Third Cause of Action for Violation of Labor Code Sections 204, 210, 226, and 2802 is GRANTED in favor of Plaintiff and against Defendants.

**V. Analysis of the Motion for the Fourth Cause of Action for Violation of Business and Professions Code Section 17200 et seq.**

Plaintiff's Fourth Cause of Action alleges that Defendants violated Business and Professions Code section 17200 et seq. by intentionally misclassifying Plaintiff as an independent contractor, failing to pay her wages, failing to reimburse her, and intentionally inducing Plaintiff to provide services with no intent to compensate her. (Complaint, ¶ 48.)

"Business and Professions Code section 17200 et seq. prohibits unfair competition, including unlawful, unfair, and fraudulent business acts. The UCL covers a wide range of conduct. It embraces anything that can properly be called a business practice and that at the same time is forbidden by law." (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1143.)

Here, Plaintiff's Motion focuses on the unlawful prong. She proffers evidence that Defendant failed to appropriately compensate her in violation of multiple Labor Code sections. (UMF 32 [Exs. 1-4, Bichko Decl., ¶¶ 3, 4, 12].) Accordingly, Plaintiff has met her initial burden of production. Defendants failed to oppose the Motion and therefore have not met their burden.

Accordingly, Plaintiff's Motion for Summary Adjudication of the Fourth Cause of Action for Violation of Business and Professions Code section 17200 et seq. is GRANTED in favor of Plaintiff and against Defendants.

## **Conclusion and Order**

Based on the findings and rulings set forth above, the Court **GRANTS IN PART** Plaintiff's Motion for Summary Adjudication as follows:

1. Plaintiff's Motion for Summary Adjudication of the First Cause of Action for Breach of Contract is **GRANTED** in favor of Plaintiff and against Defendants;
2. Plaintiff's Motion for Summary Adjudication of the Third Cause of Action for Violation of Labor Code Sections 204, 210, 226, and 2802 is **GRANTED** in favor of Plaintiff and against Defendants; and
3. Plaintiff's Motion for Summary Adjudication of the Fourth Cause of Action for Violation of Business and Professions Code section 17200 et seq. is **GRANTED** in favor of Plaintiff and against Defendants.

But the Court **DENIES** Plaintiff's Motion for Summary Adjudication of the Second Cause of Action for Promissory Fraud.

As the Court **DENIES** Plaintiff's Motion for Summary Adjudication of the Second Cause of Action, the Court also **DENIES** Plaintiff's Motion for Summary Judgment of the entire civil action.

**SO ORDERED.**

Date: June 12, 2026

Hon. Vincent I. Parrett  
Superior Court of the State of California,  
County of Santa Clara

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